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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S BRIEF RE FRAUD ON
THE COURT AND RELIANCE
RULINGS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

PLAINTIFF’S BRIEF RE: FRAUD ON THE COURT AND THE RESULTING RELIANCE-RULINGS CHAIN

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham (Officer of the Court), RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

PART I — INTRODUCTION

§I.A — The “Smoking-Gun Preamble”: What This Case Is Now About

This case has shifted from a tort action for personal injury into a fundamental inquiry into the integrity of the judicial process. At the center of this inquiry is a series of categorical denials of receipt of critical evidence (the 911/BWC CDs) by defense counsel acting as officers of the court. These denials were not mere evidentiary disputes; they were representations of fact upon which this Court explicitly and repeatedly relied to strip Plaintiff of his ability to present his case. The record now proves those representations were false.

§I.B — The Rulings Procured From That Reliance

As a direct consequence of the “credibility” this Court afforded defense counsel’s denials (Feb. 28 Tr. 292:1-7), the following structural rulings were procured against Plaintiff:

1. **MIL No. 1 Denied** (Jan. 27, p. 41:3–11) — Permitting defense to weaponize the “unproduced” 911 audio against Plaintiff’s witnesses.
2. **911 CDs Excluded** (Jan. 27, p. 38:22–25) — Depriving the jury of the primary contempora-

neous record of the event.

3. **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24) — Preventing the jury from following the audio during the limited playback permitted.
4. **Continuance Denied** (Feb. 18, p. 181) — Refusing time for Plaintiff to address the “surprise” non-receipt claim.
5. **CCP § 473 Relief Rejected** (Feb. 18, p. 181:20–25) — Rejecting Plaintiff’s plea for relief from the surprise of defense’s denial.
6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3) — Placing the burden on Plaintiff to prove why the trial should not be terminated, based on the “falsity” of Plaintiff’s representation that defense had received the CDs.
7. **Supplemental Report Excluded** (RT 7, p. 156:24–28) — Barring evidence that corroborated Plaintiff’s possession chain.

§I.C — The Nine-Point Receipt Chain: The Audacity of the Denials

The denials of receipt were not just mistaken; they were irreconcilable with a two-year record of notice and possession:

1. **Aug. 18, 2022 — Service of 911 audio by Dolan to defense counsel. Pincite / source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140. **Who had notice:** Chambers / CSK.
2. **Aug. 18, 2022 — Rosario deposition — Chambers present. Pincite / source:** Rosario depo tr. **Who had notice:** Chambers.
3. **Sept. 30, 2022 — Abdelhalim deposition — Chambers present; 911-related sworn testimony. Pincite / source:** Abdelhalim depo tr. **Who had notice:** Chambers.
4. **May 4, 2023 — Substitution of Attorney (Transaction ID #69953800) — file transferred from CSK → PSA. Pincite / source:** CT record. **Who had notice:** CSK → PSA.
5. **Feb. 1, 2024 — Reyna (PSA) Compex subpoena to SFPD for identical materials. Pincite / source:** Order No. CA1147102-021. **Who had notice:** PSA.
6. **Feb. 26, 2024 — SFPD produced records responsive to subpoena. Pincite / source:** SFPD Report 210079556. **Who had notice:** PSA.
7. **Sept. 9, 2024 — Plaintiff’s FROG/SROG served on Reyna identifying CAD log. Pincite**

1 / source: FROG p. 28, ll. 23–25; SROG p. 9, ll. 9–11. **Who had notice:** PSA.

2 8. **Feb. 18, 2025 — Jessup testifies “Dolan had a copy since 2021”.** Pincite / source: Hr’g
3 Tr. Feb. 18, 2025, p. 139, l. 11. **Who had notice:** Navaratnasingham (present).

4 9. **Apr. 16, 2025 — Navaratnasingham admission: “They were provided by Dolan”.** Pincite
5 / source: RT 7, p. 213, ll. 13–15. **Who had notice:** PSA (admitting).

6 **§I.D — The Gravamen: A Strategic Deception of the Court**

7 The “Smoking Gun” is not merely the April 16 admission that defense counsel had the CDs all
8 along. It is the tactical use of the denial of those CDs to procure a series of rulings that dismantled
9 Plaintiff’s case. Defense counsel used their status as officers of the court to “borrow” the Court’s
10 authority to punish Plaintiff for a failure that was, in fact, a defense concealment.

11 **§I.E — Thesis: Why This Is Fraud on the COURT, Not Just on Plaintiff**

12 Fraud on the court occurs where the “integrity of the adjudication process” is subverted by an
13 officer of the court. (See Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238,
14 244-245.) This is not a dispute over evidence between parties; it is a betrayal of the tribunal itself.
15 By misleading the Court into a “burden-shift” against Plaintiff based on a known false premise,
16 defense counsel did more than win a case—they corrupted the machinery of justice.

18 **PART II — LEGAL FRAMEWORK**

19 **§II.A — Fraud on the Court (Hazel-Atlas / Stevenot / Modnick / Chambers)**

20 Fraud on the court is “a wrong against the institutions set up to protect and safeguard the public.”
21 (Hazel-Atlas, supra, 322 U.S. at 246.) It involves “fraud which is directed to the judicial machinery
22 itself” and is not merely an “ordinary” case of fraud between litigants. (Stevenot v. Harbany (1984)
23 154 Cal.App.3d 1051.) When an officer of the court misleads the judge, the very foundation of the
24 adversary system is compromised.

25 **§II.B — Extrinsic Fraud — The Four Channels (Kulchar / Westphal / Kougasian / Olivera)**

26 Extrinsic fraud exists when a party is “kept from presenting his case to the court” by the “fraud
27 or deception of his adversary.” (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471.) California courts
28 recognize four primary channels of extrinsic fraud, all present here: 1. **Concealment** of facts

1 that would have permitted a full contest. 2. **False promises** of cooperation (or in this case, false
2 representations of non-receipt). 3. **Keeping the party in ignorance** of the true state of the record.
3 4. **Misleading the tribunal** to procure a structural advantage.

4 **§II.C — Attorney Deceit — Bus. & Prof. Code § 6128(a) (Rickley / Shaffer)**

5 Under § 6128(a), an attorney who is “guilty of any deceit or collusion, with intent to deceive the
6 court or any party” is guilty of a misdemeanor and liable for treble damages. This statute reflects
7 the high duty of candor required of those licensed to practice before the bar.

8 **§II.D — Duty of Candor — Rule of Professional Conduct 3.3 (Jones / Datig)**

9 Rule 3.3 prohibits a lawyer from knowingly making a “false statement of fact or law to a tribunal.”
10 This duty is absolute and supersedes the duty of zealous advocacy. (Datig v. Dove Books, Inc.
11 (1999) 73 Cal.App.4th 964.)

12 **§II.E — Suppression / Spoliation Analogs — CCP § 2023 (Williams / Slesinger / Peat Mar-**
13 **wick)**

14 The systematic denial of receipt of evidence—while in possession of that evidence—is a form
15 of discovery misuse and evidence suppression that warrants the most severe sanctions, including
16 terminating sanctions. (Slesinger, Inc. v. Walt Disney Co. (2007) 155 Cal.App.4th 736.)

17 **§II.F — Constructive Fraud — Civ. Code § 1573 (Assilzadeh)**

18 Constructive fraud under Civ. Code § 1573 is the breach of a legal or equitable duty arising from
19 a confidential or fiduciary relationship, by a misleading act or nondisclosure, without proof of in-
20 tent to deceive. (Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415.) In the
21 officer-of-the-court posture that fraud-on-the-tribunal authorities such as Hazel-Atlas Glass Co. v.
22 Hartford-Empire Co. (1944) 322 U.S. 238 address, § 1573 is the **civil-side parallel** to the duty
23 Judge Wong articulated on February 28, 2025: counsel are “supposed to conduct themselves ap-
24 propriately before the Court” (Hr’g Tr. p. 292, ll. 1–4). When the record later proves the tribunal’s
25 reliance on that posture was misplaced (RT 7, p. 213, ll. 13–15), the breach-of-candor framework
26 ties the fraud-on-the-court narrative to cognizable tort elements, not only to professional discipline.

PART III — THE 801 RECORD: A PARADIGMATIC FRAUD ON THE COURT

§III.A — Phase 1: The 893-Day Silence (Aug. 18, 2022 → Jan. 27, 2025)

For nearly 900 days, defense counsel remained silent about their receipt of the 911 audio, despite repeated references to the material in depositions and discovery.

§III.B — Phase 2: The May 4, 2023 File-Transfer Concealment

When PSA substituted in for CSK, the entire case file—including the 911 CDs served in 2022—was transferred. Yet PSA proceeded as if the CDs did not exist.

§III.C — Phase 3: The Four-Hearing Denial Arc (Jan 27 / Feb 18 / Feb 28 / Apr 16)

Defense counsel made eighteen (18) separate on-the-record statements denying receipt across four critical hearings, escalating the deception at each stage.

§III.D — Phase 4: The Officer-of-Court Reliance Procurement (Feb 28)

Counsel explicitly invoked their status as “officers of the court” to convince the Court that Plaintiff’s counsel was the one misrepresenting the record.

§III.E — Phase 5: The Burden-Shift Weaponization

The Court, believing defense’s “officer of the court” representations, shifted the burden of proof to Plaintiff to justify why the case should not be dismissed for his alleged “discovery failures.”

§III.F — Phase 6: The Trial-Day Admission

On April 16, 2025, when the record could no longer be suppressed, defense counsel finally admitted: “Sure. They were provided by Dolan. He has had them for whatever, sure.” This admission retroactively branded every previous denial as a fraud on the court.

PART IV — WHY THIS IS FRAUD ON THE COURT

§IV.A — Express Tribunal Reliance

Unlike intrinsic fraud (e.g., perjury by a witness), this fraud was directed at the judge. The Court’s own statements on Feb. 28 prove that its rulings were the “fruit” of this fraudulent seed.

§IV.B — Structural Procedural Consequences

This was not an argument over the weight of the CDs. It was an argument over whether Plaintiff had complied with the rules of court. By lying about receipt, defense counsel induced the Court to punish Plaintiff for a rule violation that never occurred.

§IV.C — Officer-of-the-Court Betrayal (Rule 3.3 + § 6128(a) overlap)

The fraud is compounded by the fact that it was committed by licensed attorneys who used their professional status as a shield for their deception.

§IV.D — Cross-Hearing Sustained Pattern

This was not a “slip of the tongue.” It was a sustained, multi-month campaign of deception.

§IV.E — Pre-emption of Defense Doctrines

Defense cannot hide behind the litigation privilege (Civ. Code § 47(b)) because that privilege does not apply to “illegal” conduct as a matter of law (Flatley v. Mauro (2006) 39 Cal.4th 299) nor to fraud on the court itself (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232).

PART V — THE LAWS-BROKEN CATALOG

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion	Intentional deception re: file transfer and receipt.
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 3.4(a)	Fairness to opposing counsel	Withholding receipt history to procure exclusion.

Rule / Code	Provision	Defense Conduct
Civ. Code § 1572(3)	Actual fraud (suppression)	Suppression of the fact of receipt for 893 days.
Evid. Code § 413	Willful suppression	Adverse inference requested for all 911-related issues.

PART VI — RELIEF AVAILABLE

§VI.A — Vacatur (equitable action under Kougasian / Olivera)

Plaintiff is entitled to have all rulings procured by this fraud vacated immediately.

§VI.B — Terminating Sanctions (Slesinger)

Defense counsel’s corruption of the judicial process is so pervasive that no remedy short of terminating sanctions (striking the Answer) can restore the integrity of the case.

§VI.C — Monetary Sanctions (§ 6128(b) treble; § 128.5; § 2023.030)

Plaintiff requests treble damages and all fees incurred in combatting this 900-day deception.

§VI.D — Fee-Shifting (§ 6128(a) private action per Rickley)

Attorney’s fees are mandatory where attorney deceit is proven.

§VI.E — State Bar Referral (§ 6086.7)

This Court has a mandatory duty to report the conduct of counsel where it warrants discipline.

PART VII — CONCLUSION

This Court was told a story. It was a story of a Plaintiff who withheld evidence and a Defense that was blindsided. This Court believed that story because it was told by “officers of the court.” This Court then ruled based on that story, and Plaintiff’s case was gutted.

The story was a lie. The record now proves it. Justice requires that the consequences of that lie be undone.

Plaintiff respectfully requests that the Court grant terminating sanctions and vacate all rul-

1 **ings procured by defense's fraud on the court.**

Dated: April 18, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", is positioned above the printed name.

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